

Rental housing stock

BY-LAW NO. 9488

**A By-law to adopt the
Development Plan regarding areas of real property
in certain RM, FM, and CD-1 Zoning Districts
as an Official Development Plan**

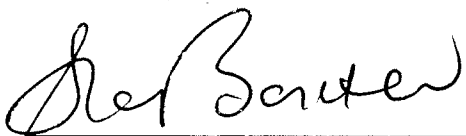
THE COUNCIL OF THE CITY OF VANCOUVER, in public meeting, enacts as follows:

1. Council adopts, as an official development plan, the instrument entitled "Official Development Plan Regarding Areas of Real Property in Certain RM, FM, and CD-1 Zoning Districts" attached to this By-law as Schedule A.
2. Schedule A forms part of this By-law.
3. This By-law is to come into force and take effect on the 16th day of July, 2007.

ENACTED by Council this 24th day of May, 2007



Mayor



City Clerk

SCHEDULE A

CITY OF VANCOUVER

**OFFICIAL DEVELOPMENT PLAN REGARDING AREAS OF
REAL PROPERTY IN CERTAIN RM, FM, AND CD-1 ZONING DISTRICTS**

TABLE OF CONTENTS

SECTION 1 INTERPRETATION

- 1.1 Definitions
- 1.2 Imported definitions
- 1.3 Incorporation by reference
- 1.4 Table of contents and headings
- 1.5 Severability
- 1.6 Application

SECTION 2 RENTAL HOUSING POLICY

- 2.1 CityPlan policy about rental housing
- 2.2 Concerns about rental housing
- 2.3 Location of rental housing
- 2.4 Rental housing policy
- 2.5 Affordable housing and special needs housing policies

**OFFICIAL DEVELOPMENT PLAN REGARDING AREAS OF
REAL PROPERTY IN CERTAIN RM, FM, AND CD-1 ZONING DISTRICTS**

**SECTION 1
INTERPRETATION**

Definitions

1.1 In this instrument:

“ODP” means this instrument, being the official development plan for the real property in the zoning districts;

“rate of change” means the percentage net loss of rental housing units in a zoning district in the 365 days preceding the date on which a person submits a rezoning or development application for a multiple dwelling consisting of six or more dwelling units, on real property in that zoning district, as determined by the Director of the Housing Centre or successor in function;

“rental housing unit” means a dwelling unit, housekeeping unit, or sleeping unit on a site that a tenant rents, or has rented, for the purpose of living accommodation but does not include a unit rented by a not for profit housing cooperative to a member of the cooperative or a unit in a special needs residential facility; and

“zoning districts” mean the RM-2, RM-3, RM-3A, RM-4 and RM-4N, RM-5, RM-5A, RM-5B and RM-5C, RM-6, FM-1, and CD-1 zoning districts referred to in section 9.1 of the Zoning and Development By-law, the boundaries of which the Zoning District Plan, and amendments to it, attached as Schedule D to the Zoning and Development By-law, delineate.

Imported definitions

1.2 Except for the definitions set out in section 1.1, the definitions in section 2 of the Zoning and Development By-law apply to this ODP.

Incorporation by reference

1.3 This ODP incorporates by reference all policies and guidelines referred to herein.

Table of contents and headings

1.4 The table of contents and headings in this ODP are for convenient reference only, and are not for use in interpreting or enforcing this ODP.

Severability

1.5 A decision by a court that any part of this By-law is illegal, void, or unenforceable severs that part from this By-law, and is not to affect the balance of this By-law.

Application

1.6 This ODP applies to real property in the zoning districts.

SECTION 2 RENTAL HOUSING POLICY

CityPlan policy about rental housing

2.1 On June 6, 1995, Council adopted “CityPlan: Directions for Vancouver” which, under the title “Addressing Housing Costs”, includes a specific policy to “maintain a stock of rental housing”, and, in the years since the adoption of “CityPlan”, Council has continued to address the issue of rental housing.

Concerns about rental housing

2.2 Council has concerns about the reserve of rental housing stock because, among other things, of the scarcity of federal or provincial incentives to develop rental housing; competition from the condominium industry; the lack of new development of purpose built rental housing; the number of rental housing units demolished or targeted for demolition; the fact that 56% more or less of households occupy rental housing units and that 31% more or less of those households are in core need; the low vacancy rate for rental housing units; the limited remaining capacity of industrial areas “let go” by Council for residential development; the limited future capacity for the development of rental housing in other areas of the city; and the growing demand for rental housing.

Location of rental housing

2.3 The zoning districts include a significant supply of rental housing.

Rental housing policy

2.4 Council’s policy regarding real property in the zoning districts is that development on any site of a multiple dwelling consisting of six or more dwelling units that requires the demolition or change of use or occupancy of a rental housing unit on that site, and that exceeds a rate of change of 0% for the district in which the site is situate, is not permissible unless a housing agreement, satisfactory to Council, provides for the replacement of, or contribution to the replacement of, such rental housing units, on or off site, or the provision of another form of affordable housing.

Affordable housing and special needs housing policies

2.5 Council's existing policies respecting affordable housing and special needs housing are to continue to apply to real property in the zoning districts. Such policies include, among others CityPlan: Directions for Vancouver adopted by Council on June 6, 1995; Affordable Housing Policies adopted by Council on May 8, 1989, October 17, 1989, May 16, 1991, October 16, 2001, June 14, 2005 (Homeless Action Plan), and September 22, 2005 (Housing Plan for the Downtown Eastside); and Special Needs Residential Facility Guidelines adopted by Council on September 17, 1983 and amended on July 25, 1989, February 4, 1982, and May 4, 2004.